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Gavin Newsom Signs Ban on Artificial Food Dyes in School Snacks and Drinks. What to Know

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Many brightly colored kids' snacks and beverages will disappear from California schools under a new law Gov. Gavin Newsom signed on Sunday that bans certain artificial food dyes from K-12 campuses.

Starting in 2028, six common food dyes will no longer be allowed in food sold at schools because of concerns that they cause behavior and attention problems in some children. The banned dyes are: Blue 1, Blue 2, Green 3, Red 40, Yellow 5 and Yellow 6.

Artificial food coloring production in the U.S. has increased more than six-fold since the Food and Drug Administration first issued safety regulations in the 1930s. Although initial studies indicated that artificial colors were nontoxic, recent research has linked eating foods containing synthetic dyes to hyperactivity and trouble concentrating, particularly among children.

This legislation builds on a first-in-the-nation law Newsom signed last year to ban the sale of food containing four food additives common in candies and baked goods, and are thought to be harmful. That law applies to food sold anywhere in California, while this year's legislation focuses solely on school nutrition.

"The reason it makes sense to focus on schools is because that's where a lot of those behavioral and hyperactivity issues are going to compound," Melanie Benesh, vice president for government affairs with Environmental Working Group, a national advocacy group that co-sponsored the legislation. "If you know there are kids in these schools that have a sensitivity to these dyes, and it makes it harder for them to concentrate, then you are not creating the most conducive learning environment for those kids."

Several state legislatures are considering bills similar to California's. The federal government, however, has not updated its safety standards.

"California is once again leading the nation when it comes to protecting our kids from dangerous chemicals that can harm their bodies and interfere with their ability to learn," said Assemblymember Jesse Gabriel, the Democrat from Encino who authored the law.

Packaged food manufacturers opposed the food dye restrictions, saying that the FDA — not California — is the appropriate food safety regulator.

"The approach taken by California politicians ignores our science and risk based process and is not the precedent we should be setting when it comes to feeding our families," said John Hewitt, a senior vice president at Consumer Brands Association, which opposed the measure. The organization represents major food manufacturers, such as Coca Cola and J.M. Smucker.

What does the science say on food dyes?

Managing risk of harmful chemicals can be tricky, and California is no stranger to considering controversial legislation that attempts to reduce exposure.

An early version of the law Newsom signed last year to ban certain food additives was derided by critics as a "Skittles ban" before lawmakers amended it in a way that excluded the dye in the popular candy. Meanwhile, cancer warnings that are required by a 1986 law known as Proposition 65 are often criticized for creating consumer confusion and spurious lawsuits.

But advocates say federal regulations don't move as quickly as science, requiring state lawmakers to take initiative.

California's environmental hazard research agency published a 300-page report assessing the risk of synthetic food dyes in 2021. The conclusion: The studies used by the FDA to develop safety standards did not assess neurological outcomes that have since been associated with food coloring. Those papers, which are between 35 to 70 years old, instead looked for physiological toxic effects, such as weight gain or decreased liver function in animals.

More recent research, including clinical trials, show links between eating dye and behavioral problems in children at much lower doses than the FDA's current allowable limit.

"We all agreed that the weight of evidence supported an association, and that the current acceptable daily intakes for some of the dyes set by FDA may not adequately protect against behavioral or neurobehavioral outcomes," said Asa Bradman, a public health professor at UC Merced who worked on the state's risk assessment. "And you know, that's kind of a bombshell."

Hewitt from the Consumer Brands Association said packaged food manufacturers stand by the FDA guidelines.

"It's unfortunate the scientifically proven, safe ingredients have been demonized without a scientific basis," Hewitt said.

But Bradman said the industry hasn't been able to discredit any of the newer research — it has only pointed to the original studies, which are outdated and not appropriate for assessing behavioral changes.

Dyes in juice, soda and ice cream

Children are the most vulnerable to the adverse effects associated with food coloring, in part, because they're more likely to eat foods and beverages that are dyed. Even medications for children, such as cough syrup and vitamins, are manufactured with synthetic dyes. Kids are also more susceptible because their brains are still developing, and their body weight is smaller compared to the amount of dye consumed, research shows.

Juice, soda, icing and ice cream cones are major sources of exposure among kids.

Poverty and race also increase exposure risk, the state's report found. Black children and women of childbearing age ingested significantly more food coloring than other ethnic groups.

The foods that contain the most dye are "poor quality junk food," Bradman said. Most schools already have healthy food programs aimed at reducing them on campus. This legislation would help encourage schools to serve even healthier foods, he said.

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